

**f. The moral fitness of the parties involved.**

Plaintiff's/Father's criminal record that was testified to is old and not significant to the Court. There is no criminal history regarding Defendant/Mother. The real concern is the moral fitness of the parties as to how they will function as a parent.

The Court has reviewed the police reports that were admitted into evidence and has reviewed the communications contained in the AppClose transcript that was admitted into evidence. Plaintiff/Father fails to understand how his behavior, such as calling multiple police departments on the same day regarding Defendant/Mother, and how he speaks to Defendant/Mother in the AppClose transcript, amount to badgering and harassment inflicted on Defendant/Mother. Plaintiff does not appreciate that his behaviors are creating the problem. This Factor favors Defendant/Mother.

**g. The mental and physical health of the parties involved.**

The testimony was that Plaintiff/Father has been diagnosed with ADD for which he does not take prescribed medications but does participate in counseling once a month. Plaintiff/Father utilizes marijuana to medicate his ADD. Marijuana is legal, but it is concerning as to whether or not the marijuana laws are being followed given the child gets out of the car and smells of marijuana. Defendant/Mother does not have any mental or physical health concerns. This Factor slightly favors Defendant/Mother.

**h. The home, school, and community record of the child.**

The child is young and is not yet enrolled in school. The testimony was that the minor child and his sibling have a very close bond. Regarding the community record, it appears that the maternal grandmother has been providing childcare both when the parties were still in a relationship and has continued to provide childcare since the